

24CV04379 Diana Sandoval v. Robert Seidler, et al.

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-06-24

Motion: Motion of Defendants Robert Seidler and PoloDonkey, LLC to Stay Proceedings in Case after Jury Trial in Related Case No. 24CV05259

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Case Number

24CV04379

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 06/24/2026 - 10:00

Nature of Proceedings

Motion of Defendants Robert Seidler and PoloDonkey, LLC to Stay Proceedings in Case after Jury Trial in Related Case No. 24CV05259

Tentative Ruling

For Plaintiff Diana Sandoval, trustee of the Sandoval Quiel Revocable Living Trust: Stephen M. Sanders, Jeff G. Coyner, Sanders Coyner Cade PC

For Defendants PoloDonkey, LLC and Robert Seidler: Todd A. Amspoker, Jeff F. Tchakarov, Price Postel & Parma LLP

RULING

For all reasons discussed herein, Defendants' motion to stay proceedings in this case is denied.

Background

This action commenced on August 5, 2024, by the filing of the original petition and complaint by Plaintiff Diana Sandoval, trustee of the Sandoval Quiel Revocable Living Trust (Sandoval) against Defendants County of Santa Barbara Department of Planning and Development (CSBDPD) for: (1) Writ of Administrative Mandamus, (2) Nuisance, and (3) Negligence. In the original complaint, PoloDonkey was identified as the real party in interest.

On February 6, 2025, Sandoval filed her operative second amended petition for writ of mandate and complaint for damages (SAC), asserting causes of action for: (1) Writ of Administrative Mandamus, (2) Writ of Mandate, (3) Violation of California Coastal Act, (4) Nuisance, (5) Negligence, (6) Inverse Condemnation, (7) Fraud/Deceit, (8) Negligent Misrepresentation, (9) Waste & Trespass, (10) Ejectment, (11) Quiet Title on Easement & Action for Possession Based on Unlawful Use, and (12) Declaratory Relief, against Defendants CSBDPD, County of Santa Barbara Board of Building Appeals (collectively the "County Defendants"), California Coastal Commission (the "Coastal Commission"), PoloDonkey, and Robert Seidler (Seidler). Following the sustaining of demurrers, without leave to amend, Sandoval's complaint was dismissed as to the County Defendants and the Coastal Commission.

As alleged in the SAC:

Sandoval is the owner of real property located at 3196 Serena Avenue, Carpinteria (the Serena Property). (SAC, ¶ 1.)

PoloDonkey owns real property located at 3215 Foothill Road, in Carpinteria, California (the Foothill Property). (SAC, ¶ 5.)

Seidler is the principal, beneficiary, and interested owner of PoloDonkey. (SAC, ¶ 6.)

On or before October 30, 2006, PoloDonkey's predecessor in interest, through its manager and principal Michael Rothbard (Rothbard), confirmed in writing that they would abandon one existing residential driveway and the use therefore of the Serena Property easement, road access, and previous bridge. (SAC, ¶ 34 & Exh. 12.) Rothbard expressly stated to the County that they would create two new driveways, one for residential access and one for commercial equestrian facility use, both of which driveways were located with access onto Foothill Road. (Ibid.)

Rothbard, and PoloDonkey's predecessor company, maintained this abandonment of the Serena Property easement and did not use the tertiary road and previous bridge associated with the easement until Rothbard sold the Foothill Property to PoloDonkey. (SAC, ¶ 35.) PoloDonkey, through Seidler, purchased the Foothill Property on July 31, 2014, and thereafter used it unlawfully, without permitted use or entitlement thereto, or right of legal access to the Serena Property. (SAC, ¶ 36.)

In 2016, Siedler misrepresented and submitted on behalf of PoloDonkey an application stating, "Access will continue to be provided off of Foothill Road" without reference to or disclosure of PoloDonkey's and Siedler's unlawful use of the expressly abandoned bridge and the Serena Property easement. (SAC, ¶ 37.)

On June 30, 2025, Seidler and PoloDonkey answered the SAC admitting some allegations and denying others.

Related Case:

On December 18, 2024, Sandoval filed a notice of related case regarding Case No. 24CV04379, PoloDonkey v. Quiel, et al. In that matter:

On September 23, 2024, Plaintiff PoloDonkey, LLC, (PoloDonkey) filed a verified complaint against Defendants Tyler N. Quiel (Quiel) and Diana Sandoval (Sandoval) (collectively, "Defendants"), alleging six causes of action: (1) interference with easement; (2) private nuisance; (3) quiet title; (4) declaratory relief; (5) temporary restraining order and preliminary and permanent injunctions; and (6) quiet title to prescriptive easement. As alleged in the complaint:

PoloDonkey owns real property located at 3215 Foothill Road/3200 Serena Avenue, in Carpinteria, California. (Compl., ¶ 8.) Defendants are the owners of property located at 3196 Serena Avenue, in Carpinteria, California. (Compl., ¶ 9.) The PoloDonkey Property is benefitted by an express easement located on a portion of the Serena Property. (Compl., ¶¶ 11-13.) Contrary to the express language of the easement, Defendants have maintained a fence on and across the easement, blocking PoloDonkey's access and denying PoloDonkey a safe and unobstructed easement area. (Compl., ¶¶ 15-16.)

On November 26, 2024, Defendants filed a verified answer to the complaint, responding to its allegations and asserting forty-three affirmative defenses.

The matter was tried simultaneously before a jury and the Court on January 5, 6, 8, 9, 12, 13, 15, 16, 20, 22, and 23, 2026. Following the presentation of each side's respective cases, judgment was entered in favor of PoloDonkey.

On February 9, 2026, the Court issued its final statement of decision, and on March 17, 2026, the Court signed the judgment. The judgment requires Defendants to do, or abstain from doing, several things, including: (1) refraining from interfering with PoloDonkey's valid easement, including by maintaining or installing immobile fencing on the easement area or by preventing PoloDonkey free access through a swinging gate, (2) maintaining and keeping the easement area free of any obstructions that could unreasonably interfere with PoloDonkey's use and enjoyment of the easement for its purpose and scope as set forth in the Official Records of Santa Barbara County, (3) sign and deliver to PoloDonkey, within 10 calendar days after formal written request by PoloDonkey, the Owner/Applicant Consent Form referenced in the Letter re: Determination of Application Incompleteness, dated May 9, 2025, and sent by the Santa Barbara County Planning and Development Department to Ms. Eva Turenchalk, and any other documents required by the County, in order to allow the County to proceed with review and processing of Plaintiff's currently pending Coastal Development Permit application submitted on April 10, 2025, (4) remove the black locked mailbox, which Defendants installed at the intersection of the easement roadway and Serena Avenue and return and reinstall PoloDonkey's old mailbox to its previous location, and to refrain at any time in the future from removing or otherwise tampering with PoloDonkey's mailbox, (5) remove the bamboo fence from PoloDonkey's easement and refrain from installing any immobile fencing or other unreasonable obstructions on the easement area at any time in the future, and (6) PoloDonkey has the right to maintain and preserve the existing access bridge within its full structural footprint. It was also ordered that PoloDonkey is entitled to recover its costs pursuant to Code of Civil Procedure section 1033, et seq.

On February 10, 2026, Defendants filed a notice of appeal of the judgment. The appeal remains pending.

On May 13, 2026, the appellate Court entered an Order for Writ of Supersedeas, that vacated the March 26, 2026 temporary stay, staying enforcement the judgment's mandatory injunctions, and allowing the prohibitory injunctions to remain in full force and effect while the appeal is pending.

In the present case, on March 6, 2026, PoloDonkey and Seidler filed their motion to stay proceedings following the jury trial in Case No. 24CV05259.

Quiel and Sandoval oppose the motion to stay proceedings.

Analysis

"(a) Except as provided in Sections 917.1 to 917.10, inclusive, and in Section 116.810, the perfecting of an appeal stays proceedings in the trial Court upon the judgment or order appealed from or upon the matters embraced therein or affected

thereby, including enforcement of the judgment or order, but the trial Court may proceed upon any other matter embraced in the action and not affected by the judgment or order.

(b) When there is a stay of proceedings other than the enforcement of the judgment, the trial Court shall have jurisdiction of proceedings related to the enforcement of the judgment as well as any other matter embraced in the action and not affected by the judgment or order appealed from.” (Code Civ. Proc., § 916.)

“ ‘The purpose of the automatic stay provision of section 916, subdivision (a) ‘is to protect the appellate Court’s jurisdiction by preserving the status quo until the appeal is decided. The [automatic stay] prevents the trial Court from rendering an appeal futile by altering the appealed judgment or order by conducting other proceedings that may affect it.’ ” [Citation.] (URS Corp. v. Atkinson/Walsh Joint Venture (2017) 15 Cal.App.5th 872, 881.)

PoloDonkey and Seidler argue that this action should be stayed because they directly affect the pending appeal of the judgment in Case No. 24CV05259. This argument is somewhat muted by PoloDonkey and Seidler’s prior arguments with respect to their opposition to Plaintiffs’ motion to consolidate. Relative to that opposition, PoloDonkey and Seidler argued that there was insufficient overlap of common facts and legal issues to warrant consolidation, that Sandoval’s claim for Coastal Act violations and PoloDonkey’s prescriptive easement claim cannot be adjudicated in the same trial, and that consolidation would complicate and confuse the issues.

In denying the motion for consolidation, the Court agreed with the opposition, finding:

“That the only overlap of factual and legal issues between the Lead Case [this case] and the Related Case [Case No. 24CV05259] concerns the existence and validity of the Easement. Unlike the Lead Case, the issues in the Related Case have been narrowed down and PoloDonkey seeks merely to confirm the existence of the Express Easement (publicly recorded in 1915) and to establish the existence of a Prescriptive Easement over the Serena Property. Should the Court confirm PoloDonkey’s Easement rights, the Complaint filed in the Related Case prays for injunctive relief compelling Sandoval to remove the Bamboo Fence and refrain from installing new obstructions on the Easement area.” (Minute Order of Oct. 29, 2025.)

“That in the Lead Case, Sandoval alleges that any Easement rights PoloDonkey may have once had over the Serena Property have now been extinguished and/or abandoned, and thus the Bridge extends illegally onto the Serena Property and should be removed. This exhausts the factual and legal overlap between the two cases because Sandoval’s remaining allegations asserted in the Lead Case have nothing to do with the limited issues of the existence and validity of the Easement set forth in the Related Case.” (Minute Order of Oct. 29, 2025.)

“That Sandoval’s insistence in the Motion that the background of both cases is ‘nearly identical’ is without merit.” (Minute Order of Oct. 29, 2025.)

While correctly pointing out that PoloDonkey and Seidler’s cited authorities relate only to cases where the stay took place within a single action, Plaintiffs’ argument that the Court cannot stay a related case is without merit. There is no authority that prevents the Court from exercising both statutory authorities and its own inherent powers to stay this proceeding if it would accommodate the ends of justice. “Even when the statutes do not call for an automatic stay on appeal, the trial and appellate Courts both have the power to issue discretionary stays.” (Daly v. San Bernardino County Bd. of Supervisors (2021) 11 Cal.5th 1030, 1039.)

However, even though it has the power to do so, the Court does not find that it would accommodate the ends of justice to stay this action pending the appeal in the related case. As the Court found previously, there is limited overlap between this action and the related action. This action has been pending for just short of two years and there is no compelling reason that it should be stayed pending the appeal in the related case.

PoloDonkey and Seidler's argument that, alternatively, this case should be stayed because Sandoval's cause of action for coastal action violations is not ripe, has been previously addressed and is unsupported by any persuasive legal authority.

The motion to stay action will be denied.

Judges

Judge Thomas Anderle

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